

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Squad #07	CCRB Case #: 201503829	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/13/2015 10:10 PM	Location of Incident: 67th Precinct stationhouse	18 Mo. SOL 11/13/2016	Precinct: 67		
Date/Time CV Reported Thu, 05/14/2015 9:06 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/14/2015 9:06 AM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Christophe Burton	16667	944399	PBBS SU		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Michael Mitchell	12463	935328	PBBS SU		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Christophe Burton	Abuse: PO Christopher Burton damaged § 87(2)(b) s property.	A . Unsubstantiated			

Case Summary

On May 13, 2015, at approximately 10:10 p.m., § 87(2)(b) was arrested by PO Christopher Burton and charged with § 87(2)(b).

After being transported to the 67th Precinct stationhouse, § 87(2)(b) was released with Desk Appearance Tickets.

At approximately 12:30 a.m. on May 14, 2015, after realizing that some of her property had been returned damaged, § 87(2)(b) returned to the 67th Precinct stationhouse. § 87(2)(b) alleged that officers broke her Marvin the Martian keychain and broke the BMW button off of her key protector (**Allegation A**) (B.R. 01). She did not witness an officer damage the property.

Mediation, Civil and Criminal Histories

A Notice of Claim inquiry was requested on June 12, 2015, the results of which will be forwarded upon receipt. This complaint was unsuitable for mediation. § 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint filed by or involving § 87(2)(b).
- PO Burton has been a member of the service for seven years and has been the subject of eleven allegations stemming from seven previous complaints, one of which was substantiated. § 87(2)(g).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Explanation of Subject Officer Identification

- § 87(2)(g)

Allegation A: Abuse of Authority – PO Christopher Burton damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that while her key, key protector and Marvin the Martian key chain were in PO Burton's possession, her key chain and BMW button on her key protector were broken. She did not specifically witness the items being damaged (See § 87(2)(b)'s CCRB Statement).

PO Burton denied damaging any of § 87(2)(b)'s property and denied even having possession of § 87(2)(b)'s Marvin the Martian key chain when he drove her car back to the 67th Precinct stationhouse (See PO Burton's CCRB Statement). PO Burton momentarily allowed PO Michael Mitchell to hold onto the key while he conducted an inventory search of § 87(2)(b)'s vehicle, and during this time, PO Mitchell did not observe the Marvin the Martian

keychain on the key, nor did he observe any damage to the key protector (See PO Mitchell's CCRB Statement).

Both PO Burton and PO Mitchell stated that the first time they saw the Marvin the Martian key chain was when § 87(2)(b) brought it to the precinct to complain. Neither officer remembered if a BMW button was on § 87(2)(b)'s key protector, noting that it was too minute of a detail for them to recall when they only had the key protector for a short period of time. Although § 87(2)(b) provided photos of her damaged property, there was no way of telling how or when the property was damaged.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 7

Investigator:	<u>Lauren Kerstein</u>	<u></u>
	Signature	Print Date

Supervisor:	<u></u>	<u></u>
	Title/Signature	Print Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Print Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Print Date